

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 17-03**

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**ANTONIO EGBERTO CARNEIRO LIMA**

**v.**

**FASTWAY MOVING AND STORAGE, INC., d/b/a DREAM CARGO, d/b/a FASTWAY, d/b/a FASTWAY MOVING; FASTWAY MOVING AND SERVICES CORP.; FASTWAY MOVING AND TRADING CORP.; ABREU LOPES TRANSPORTES LTDA; and ABRUE LOGISTICS USA, LLC d/b/a ABREU LOGISTICS & CARGO**

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**DECLARATION REGARDING STATUS OF SERVICE ON RESPONDENTS**

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KARINA PIA LUCID, ESQ., being of full age, hereby declare as follows:

1. I am an attorney at law in the State of New Jersey, with a principal place of business and bone fide office located at 3640 Valley Road, Suite 2A, Liberty Corner, New Jersey 07938-0230.
2. I represent the complainant (the "Complainant"), in the above-referenced proceeding.
3. This declaration is being presented for the purpose of providing the Court with a status update in regards to service on the respondents ("Respondents") in the above- referenced proceeding.
4. A true and correct copy of the Affidavit of Service from Guaranteed Subpoena , as well as copies of the Certified Mail Receipts for the addresses in Florida and Massachusetts, are attached herewith as **EXHIBIT "A"**.
5. A copy of the Verified Complaint and letter sent to Secretary of the Federal Maritime Commission dated April 3, 2017 was served upon Fastway and its registered agents at the following addresses:

- I. 78 John Miller Way, Suite 229, Kearny, New Jersey 07032
- II. 5 Palisades Rd, Old Bridge, New Jersey 08857
- III. 1401 Green Road, Pompano Beach, Florida 33064
- IV. 4100 N. Powerline Road, Suite W3, Pompano Beach, Florida 33073
- V. 6 K Gill Street, Woburn, Massachusetts 01801

6. We were able to effectuate service successfully to Managing Agent, Enunic Ogha, 78 John Miller Way, Suite 229, Kearny, New Jersey 07032 via Guaranteed Subpoena. Service was effectuated on E. Ogha on May 23, 2017 at approximately 2:26 PM (EST).

7. We attempted to serve Registered Agent Victor S. Passos at 5 Palisades Rd, Old Bridge, New Jersey 08857 via Guaranteed Subpoena but service at this address was unsuccessful. We are advised by Guaranteed Subpoena that there is a vacant home at this address.

8. The following were sent via Certified Mail:

- I. Unsuccessful/undeliverable at 1401 Green Road, Pompano Beach, Florida 33064
- II. 2. Refused at 4100 N. Powerline Road, Suite W3, Pompano Beach, Florida 33073
- III. 3. Unsuccessfully served to Registered Agent, Robson Lopes. 6 K Gill Street, Woburn, Massachusetts 01801 (moved and no forwarding address).

9. The following address was successfully served by the Federal Maritime Commission: Abreu Transport, Rue Deocleciana 86, Sao Pablo, SP, CEP 01106-030 Brazil.

**I declare under penalty of perjury that the foregoing is true and correct.**

Executed on the 29th day of June, 2017.

Very Truly Yours,  
Karina Pia Lucid Esq., LLC

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Karina P. Lucid

**FEDERAL MARITIME COMMISSION**

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**v.  
FASTWAY MOVING AND STORAGE, INC., d/b/a DREAM CARGO, d/b/a FASTWAY, d/b/a  
FASTWAY MOVING; FASTWAY MOVING AND SERVICES CORP.; FASTWAY MOVING  
AND TRADING CORP.; ABREU LOPES TRANSPORTES LTDA; and ABRUE LOGISTICS  
USA, LLC d/b/a ABREU LOGISTICS & CARGO**

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**CERTIFICATION OF SERVICE**

1. I, Karina Pia Lucid, Esq. :

☒ represent Antonio Egberto Carneiro Lima, the Complainant, in this matter.

☐ am the secretary/paralegal for \_\_\_\_\_, who represents \_\_\_\_\_ in this matter.

☐ am the \_\_\_\_\_ in this case and am representing myself.

2. On June 29, 2017, I sent a copy of the following pleadings and/or documents to the parties listed in the chart below.

**(a) Declaration Regarding Status of Service on Respondents**

3. I declare under penalty of perjury that the above documents were sent using the mode of service indicated.

Date: June 29, 2017

/s/ Karina Pia Lucid

Signature

| Name and Address of Party Served : | Relationship of Party to the Case: | Mode of Service: |
|------------------------------------|------------------------------------|------------------|
|------------------------------------|------------------------------------|------------------|

|                                                                      |                                 |                                                                                                                                                                                                                                                                                                                                      |
|----------------------------------------------------------------------|---------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Enunic Ogha, 78 John Miller Way, Suite 229, Kearny, New Jersey 07032 | Managing Agent for Respondent   | <input type="checkbox"/> Hand-delivered<br><input type="checkbox"/> Regular mail<br><input checked="" type="checkbox"/> Certified mail/RR<br><input type="checkbox"/> E-mail<br><input type="checkbox"/> Notice of Electronic Filing (NEF)<br><input type="checkbox"/> Other _____<br>(as authorized by the court *)                 |
| Victor S. Passos, 5 Palisades Rd, Old Bridge, New Jersey 08857       | Registered Agent for Respondent | <input type="checkbox"/> Hand-delivered<br><input type="checkbox"/> Regular mail<br><input type="checkbox"/> Certified mail/RR<br><input type="checkbox"/> E-mail<br><input type="checkbox"/> Notice of Electronic Filing (NEF)<br><input checked="" type="checkbox"/> Other <u>Certified Mail</u><br>(as authorized by the court *) |
| 1401 Green Road, Pompano Beach, Florida 33064                        | Address listed for Respondent   | <input type="checkbox"/> Hand-delivered<br><input type="checkbox"/> Regular mail<br><input type="checkbox"/> Certified mail/RR<br><input type="checkbox"/> E-mail<br><input type="checkbox"/> Notice of Electronic Filing (NEF)<br><input checked="" type="checkbox"/> Other <u>Certified Mail</u><br>(as authorized by the court *) |
| 4100 N. Powerline Road, Suite W3, Pompano Beach, Florida 33073       | Address listed for Respondent   | <input type="checkbox"/> Hand-delivered<br><input type="checkbox"/> Regular mail<br><input type="checkbox"/> Certified mail/RR<br><input type="checkbox"/> E-mail<br><input type="checkbox"/> Notice of Electronic Filing (NEF)<br><input checked="" type="checkbox"/> Other <u>Certified Mail</u><br>(as authorized by the court *) |

| Name and Address of Party Served : | Relationship of Party to the Case: | Mode of Service: |
|------------------------------------|------------------------------------|------------------|
|------------------------------------|------------------------------------|------------------|

|                                                                           |                                 |                                                                                                                                                                                                                                                                                                                                      |
|---------------------------------------------------------------------------|---------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Robson Lopes. 6 K Gill Street, Woburn, Massachusetts, 01801               | Registered Agent for Respondent | <input type="checkbox"/> Hand-delivered<br><input type="checkbox"/> Regular mail<br><input type="checkbox"/> Certified mail/RR<br><input type="checkbox"/> E-mail<br><input type="checkbox"/> Notice of Electronic Filing (NEF)<br><input checked="" type="checkbox"/> Other <u>Certified Mail</u><br>(as authorized by the court *) |
| Abreu Transport, Rue Deocleciana 86, Sao Pablo, SP, CEP 01106-030, Brazil | Address listed for Respondent   | <input type="checkbox"/> Hand-delivered<br><input type="checkbox"/> Regular mail<br><input checked="" type="checkbox"/> Certified mail/RR<br><input type="checkbox"/> E-mail<br><input type="checkbox"/> Notice of Electronic Filing (NEF)<br><input type="checkbox"/> Other _____<br>(as authorized by the court *)                 |

LIBERTY CORNER  
8 CHURCH ST  
LIBERTY CORNER  
NJ

07938-9800  
3343950957  
(800)275-8777

3:47 PM

05/22/2017

| Product Description | Sale Qty | Final Price |
|---------------------|----------|-------------|
|---------------------|----------|-------------|

|                  |   |        |
|------------------|---|--------|
| First-Class Mail | 1 | \$1.40 |
|------------------|---|--------|

Large Envelope  
(Domestic)  
(WOBURN, MA 01801)  
(Weight:0 Lb 2.70 Oz)  
(Expected Delivery Day)  
(Wednesday 05/24/2017)

Certified 1 \$3.35  
(@USPS Certified Mail #)  
(70161370000151399476)

First-Class Mail 1 \$1.40

Large Envelope  
(Domestic)  
(POMPAÑO BEACH, FL 33073)  
(Weight:0 Lb 2.70 Oz)  
(Expected Delivery Day)  
(Thursday 05/25/2017)

Certified 1 \$3.35  
(@USPS Certified Mail #)  
(70161370000151399490)

First-Class Mail 1 \$1.40

Large Envelope  
(Domestic)  
(POMPAÑO BEACH, FL 33064)  
(Weight:0 Lb 2.60 Oz)  
(Expected Delivery Day)  
(Thursday 05/25/2017)

Certified 1 \$3.35  
(@USPS Certified Mail #)  
(70161370000151399483)

Total \$14.25

Credit Card Remitd \$14.25  
(Card Name:AMEX)  
(Account #:XXXXXXXXXX2007)  
(Approval #:520671)  
(Transaction #:529)

# U.S. Postal Service™ CERTIFIED MAIL® RECEIPT

Domestic Mail Only

For delivery information, visit our website at [www.usps.com](http://www.usps.com)

OFFICIAL USE  
POMPAÑO BEACH, FL 33064

Certified Mail Fee \$3.35

Extra Services & Fees (check box, add fee as appropriate)

☐ Return Receipt (hardcopy) \$0.00

☐ Return Receipt (electronic) \$0.00

☐ Certified Mail Restricted Delivery \$0.00

☐ Adult Signature Required \$0.00

☐ Adult Signature Restricted Delivery \$0.00

Postage \$1.40

Total Postage and Fees \$4.75

Sent To

Fastway Moving and Storage, Inc.

Street and Apt. No., or PO Box No.

1401 Gordon Rd.

City, State, ZIP+4®

Pompano Beach, FL 33064

PS Form 3800, April 2015 PSN 7530-02-000-9047

See Reverse for Instructions

# U.S. Postal Service™ CERTIFIED MAIL® RECEIPT

Domestic Mail Only

For delivery information, visit our website at [www.usps.com](http://www.usps.com)

OFFICIAL USE  
POMPAÑO BEACH, FL 33073

Certified Mail Fee \$3.35

Extra Services & Fees (check box, add fee as appropriate)

☐ Return Receipt (hardcopy) \$0.00

☐ Return Receipt (electronic) \$0.00

☐ Certified Mail Restricted Delivery \$0.00

☐ Adult Signature Required \$0.00

☐ Adult Signature Restricted Delivery \$0.00

Postage \$1.40

Total Postage and Fees \$4.75

Sent To

Fastway Moving and Storage, Inc.

Street and Apt. No., or PO Box No.

4100 N. Ravenna Rd. S.W.

City, State, ZIP+4®

Pompano Beach, FL 33067

PS Form 3800, April 2015 PSN 7530-02-000-9047

See Reverse for Instructions

# U.S. Postal Service™ CERTIFIED MAIL® RECEIPT

Domestic Mail Only

For delivery information, visit our website at [www.usps.com](http://www.usps.com)

WOBURN, MA 01801

Certified Mail Fee \$3.35

Extra Services & Fees (check box, add fee as appropriate)

☐ Return Receipt (hardcopy) \$0.00

☐ Return Receipt (electronic) \$0.00

☐ Certified Mail Restricted Delivery \$0.00

☐ Adult Signature Required \$0.00

☐ Adult Signature Restricted Delivery \$0.00

Postage \$1.40

Total Postage and Fees \$4.75

Sent To

Robson Lopes, Fastway Moving and Storage

Street and Apt. No., or PO Box No.

6K Gill Street

City, State, ZIP+4®

Woburn, MA 01801

PS Form 3800, April 2015 PSN 7530-02-000-9047

See Reverse for Instructions

Tracking Number: 70161370000151399476



Alert

Your item was returned to the sender on May 26, 2017 at 8:09 am in WOBURN, MA 01801 because the addressee moved and left no forwarding address.

Product & Tracking Information

See Available Actions

Postal Product:  
First-Class Mail®

Features:  
Certified Mail™

| DATE & TIME | STATUS OF ITEM | LOCATION |
|-------------|----------------|----------|
|-------------|----------------|----------|

May 26, 2017, 8:09 am

Moved, Left no Address

WOBURN, MA 01801

Your item was returned to the sender on May 26, 2017 at 8:09 am in WOBURN, MA 01801 because the addressee moved and left no forwarding address.

Tracking Number: 70161370000151399490



Alert

Expected Delivery Day: Thursday, May 25, 2017 ⓘ

Your item was refused by the addressee at 1:46 pm on May 25, 2017 in POMPANO BEACH, FL 33073 and is being returned to the sender.

See More ▾

Remove X

Tracking Number: 70161370000151399483



Alert

Your item was undeliverable as addressed at 10:40 am on May 27, 2017 in POMPANO BEACH, FL 33064. It is being returned if appropriate information is available.

See More ▾

Remove X